

NURAVA TECH

MERCHANT STORE HOSTING AND SAAS SERVICES AGREEMENT

Document status: Commercial decisions recorded; pending professional legal, tax, and privacy review before signature **Agreement version:** merchant-agreement-v1 **Prepared for:** Nurava Tech Platform and an independent merchant **Prepared date:** _____

Important notice: The commercial and operating decisions recorded in the Nurava Tech questionnaires are included in this Agreement. The remaining step is professional legal, tax, and privacy review to confirm the wording, compliance, entity details, and contract protections. This document is not legal, tax, privacy, or regulatory advice. Items marked **[LEGAL REVIEW / CONFIRMATION]** identify matters for a qualified professional or the Platform Provider to confirm; they do not mean that the commercial questionnaire decisions are unfinished.

1. Parties and store details

This Merchant Store Hosting and SaaS Services Agreement (the **Agreement**) is made between:

1.1 Platform provider

Legal/entity name: Nurava Tech / [LEGAL/ENTITY DETAIL TO BE CONFIRMED]

Trading/platform name: Nurava Tech Platform **Represented by:** _____, Super Admin / authorized representative **Address:**

Email: _____
Telephone: _____ **Registration/tax details:** [LEGAL/ENTITY DETAIL TO BE CONFIRMED]

The platform provider is called **Nurava, Platform, or Platform Provider** in this Agreement.

1.2 Merchant

Legal/business name: _____

Trading name: _____

Owner/authorized signatory: _____

Business registration number (if applicable): _____ **KRA**

PIN/tax identifier (if applicable): _____

Physical/business address: _____ **Email:**

Telephone: _____ **Merchant M-Pesa number/name:** _____

The merchant is called **Merchant** in this Agreement.

1.3 Store and subscription

Store name: _____

Nurava store slug/subdomain: _____

Custom domain, if included and approved: _____ **Selected**

plan: ☐ Starter ☐ Business ☐ Enterprise **Trial start date:** _____ **Service start date:**

Initial subscription term: Monthly **Special written commercial terms:**

The Merchant confirms that the information above is accurate and will notify Nurava of material changes.

2. Purpose and nature of the arrangement

2.1 Nurava provides a hosted software-as-a-service platform that allows approved independent merchants to operate a branded online store, publish product information, receive shopper enquiries, and use merchant management tools.

2.2 The Merchant subscribes to the selected plan and may use the hosted store during the applicable trial or paid subscription period, subject to this Agreement, the current merchant terms, privacy notice, acceptable-use rules, and platform security requirements.

2.3 **This is a hosted SaaS subscription and not a lease, tenancy, rental of physical premises, franchise, partnership, employment relationship, or transfer of ownership in the Nurava platform.** The expression “rent a store site” may be used informally, but the legal and commercial arrangement is a software-hosting subscription.

2.4 The first release is a collection of separate merchant storefronts. It is not a multi-vendor marketplace. Products from different merchants are not combined into one shared marketplace cart or sale.

3. Services included

Subject to the selected plan, verification, payment status, technical availability, and applicable limits, Nurava will provide:

- a hosted merchant storefront and tenant-specific store context;
- catalogue, product, inventory, profile, contact, and store-content tools;
- store branding, hero content, categories, featured products, testimonials, newsletter copy, contact details, and map links through available customization controls;
- platform discovery through the Nurava store directory for stores that are approved, published, host-verified, and eligible for discovery;
- merchant staff memberships and role-based access within the selected plan;
- analytics and reporting at the level included in the selected plan;
- platform subdomain hosting and, where included and technically approved, custom-domain onboarding;
- merchant support through the channels and service level confirmed by Nurava; and
- optional paid add-ons, including WhatsApp order-update notifications, when the add-on is active and the relevant customer preference and consent conditions are satisfied.

Nurava may update platform components, security controls, or implementation details while preserving the agreed commercial scope. Enterprise support or SLA terms must be recorded in the special written terms or a signed schedule.

4. Merchant-direct shopper commerce

4.1 The Merchant is the independent seller and merchant of record for products displayed in its store and for every transaction completed with a shopper.

4.2 The Merchant alone is responsible for:

- the final product description, availability, price, and offer;
- receiving and confirming shopper orders or enquiries;
- collecting or arranging shopper payment;
- delivery, collection, shipping, and delivery timing;
- returns, exchanges, cancellations, refunds, and warranty handling;
- product safety, authenticity, condition, compatibility, and lawful sale;
- taxes, invoices, receipts, and statutory obligations relating to its sales;
- customer complaints and after-sales support; and
- the Merchant's own payment, delivery, refund, return, and warranty policies.

4.3 Nurava provides store discovery, hosting, catalogue presentation, and enquiry handoff. Nurava does **not** collect shopper funds, complete the Merchant's shopper sale, or represent itself as the merchant of record for that sale.

4.4 A shopper may select products and prepare an enquiry that is handed to the Merchant through available WhatsApp or email links. The handoff is not proof that a sale, payment, delivery commitment, or contract of sale has occurred.

4.5 New shopper payment initiation, shopper payment verification, and new shopper transaction-commission creation are disabled under the merchant-direct launch model. Historical records, if any, remain separate for continuity and reconciliation.

5. Plans, fees, trial, and billing

5.1 The launch market is Kenya and the billing currency is Kenyan Shillings (KES).

5.2 Billing is monthly. The current commercial schedule is set out in **Schedule A**. Any negotiated price, discount, waiver, or Enterprise term must be written in the store details or a signed addendum.

5.3 The trial period is 30 days from the trial start date. The setup fee and first monthly subscription are collected together after the trial ends, subject to the applicable invoice and payment instructions.

5.4 The payment grace period is three days after the applicable payment due date. During an eligible grace period, public storefront access may remain available under the platform's lifecycle rules. The Merchant remains responsible for resolving the outstanding payment.

5.5 M-Pesa is the only active SaaS billing method at launch. Setup fees, first subscriptions, and renewals are invoice-driven. A renewal invoice or payment request is not an automatic recurring debit authorization.

5.6 Payment status is confirmed by the provider callback and the platform's server-side billing records. A browser return page, screenshot, or payment claim does not activate a subscription by itself.

5.7 Stripe is provider-ready in the software but is not an active launch billing method unless Nurava separately enables it and gives the Merchant written notice of the applicable terms.

5.8 Add-ons may have separate billing and lifecycle records. In M-Pesa launch mode, an add-on remains pending until the related invoice is successfully confirmed.

5.9 **Tax treatment and tax rate:** Nurava's agreed commercial policy is **16% VAT-inclusive pricing** for taxable Nurava SaaS subscriptions, one-time setup fees, and paid add-ons. A displayed amount is the total payable amount; the invoice should separately show the taxable/net amount, VAT rate, VAT amount, credits, and final total. The application of VAT remains subject to Nurava's registration and service classification being confirmed by a qualified tax professional before live charging.

5.10 **Refunds, cancellation credits, and setup-fee treatment:** A voluntary cancellation does not create a routine subscription refund; access continues through the paid period. Refunds are limited to duplicate payments, billing errors, or cases required by law. The setup fee is refundable only if Nurava cannot provision the store before setup work begins; after setup work starts, it is non-refundable. A verified core-platform outage caused by Nurava or its hosting infrastructure qualifies for an automatic account credit for all paid plans after 24 continuous hours: one day of the recurring monthly subscription for each complete 24-hour period, capped at one monthly subscription fee. The credit does not apply to the setup fee, and planned maintenance, merchant-side internet/device failures, force majeure, and optional third-party services are excluded. Counsel should confirm the final wording and any mandatory consumer or tax treatment before signature.

6. Plan entitlements and limits

The following launch configuration was recorded in the commercial decisions. The platform may enforce these limits server-side and may block additions when a limit is reached rather than creating unapproved overage charges.

Plan	Monthly subscription	Setup fee	Active products	Staff accounts	Storage	Included capabilities
Starter	KES 1,500	KES 5,000	50	3	2 GB	Nurava subdomain; basic analytics
Business	KES 3,500	KES 5,000	250	15	10 GB	One custom domain; advanced analytics
Enterprise	KES 8,500	KES 1,500	1,000	100	50 GB	Custom-domain expansion; advanced analytics; negotiated support/SLA

6.1 The plan selected in Section 1.3 controls the Merchant's available entitlements unless an approved written change is recorded.

6.2 Product, staff, custom-domain, storage, analytics, and add-on capabilities are subject to server-side entitlement checks. The Merchant may not bypass a limit through direct requests, uploads, staff invitations, or other technical means.

6.3 No separate uptime or response-time SLA is promised by the standard plans. The service-credit policy in Section 5.10 applies to all paid plans; any additional Enterprise support, response-time, uptime, onboarding, or service-credit commitment must be written in a signed Enterprise schedule.

6.4 WhatsApp notifications are an opt-in paid add-on. Promotional messages require appropriate consent and unsubscribe controls. Automated order-update messages are subject to the active add-on and the shopper's order-update preference.

7. Merchant onboarding and verification

7.1 The Merchant must provide accurate onboarding information and complete the applicable verification process before the store can be approved for publication and selling.

7.2 The verification workflow may require verified merchant email, phone OTP, government identification, location evidence, merchant-owned M-Pesa ownership evidence, and an owner declaration or business-registration evidence as applicable. KRA PIN evidence is required where the Merchant represents that it has a registered tax status.

7.3 Verification evidence must be submitted through the secure verification workflow. Sensitive identity, tax, location, and settlement evidence must not be placed in ordinary notes, chat, public product storage, or public storefront content.

7.4 Verification information is encrypted where supported by the platform. Private evidence is stored separately from public product assets and is made available to authorized reviewers through restricted, short-lived access.

7.5 The store must be published, its host must be verified, and the Merchant verification status must be approved before public storefront resolution and selling are enabled. Nurava may reject or suspend verification where evidence is incomplete, inconsistent, fraudulent, unsafe, or otherwise unsuitable for publication.

8. Merchant responsibilities and acceptable use

The Merchant will:

- use the platform only for lawful business activity and lawful products;
- keep account credentials, staff access, and M-Pesa details secure;
- ensure every staff member has the appropriate role and access;
- publish accurate catalogue, contact, price, availability, delivery, return, refund, warranty, and tax information;
- obtain and respect shopper consent for marketing communications;
- respond to shopper enquiries and complaints in a timely and professional manner;
- comply with applicable consumer, tax, advertising, privacy, product, intellectual-property, and electronic-communications requirements;
- not upload malware, unlawful material, stolen content, misleading offers, prohibited goods, or another person's confidential information without authority;
- not attempt to access another merchant's store, data, account, files, orders, or billing information; and
- promptly notify Nurava of suspected account compromise, fraud, unauthorized access, or a material business change.

The Merchant remains responsible for the legality and accuracy of its storefront and the conduct of its staff and contractors.

9. Platform security, suspension, and reactivation

9.1 Nurava may restrict or suspend a store, tenant, account, staff member, or feature to protect security, data, shoppers, merchants, the Platform, or third parties.

9.2 Security, fraud, prohibited-content, verification, or policy-related suspension may be applied by an authorized platform operator and may take effect immediately where necessary to reduce risk. The action should be recorded in the platform audit trail.

9.3 Billing lifecycle actions are partly automated. The platform records payment state and may move a subscription through past-due, grace-period, suspended, cancelled, incomplete, or unpaid states according to the configured lifecycle rules. Unpaid access must not be treated as permanently deleted immediately.

9.4 Where access ends, the platform uses a soft-deletion and retention workflow. Merchant store, catalogue, and workspace data is retained for 90 days after paid access ends, then deleted or anonymized. Closed shopper enquiries and contact details are retained for 12 months after the last interaction while the merchant workspace remains active. Sensitive verification document files are deleted 90 days after the final verification decision or account end, whichever is later; the verification result and audit record are retained separately. Nurava retains SaaS billing, invoice, payment, refund/credit, audit, and legal acceptance records for 7 years after the relationship or last transaction ends, unless a legal hold or applicable law requires longer.

9.5 Private verification objects must be successfully deleted before the related database evidence rows are removed, where the retention workflow requires deletion.

9.6 The Merchant may request reactivation or appeal by contacting Nurava. Reactivation is subject to resolution of the security, verification, policy, or payment issue and authorization by the applicable platform role. Reactivation is not guaranteed.

9.7 Notice, cure, appeal, and emergency-suspension procedure: [LEGAL REVIEW / CONFIRMATION]. Counsel should confirm the notices, response channels, appeal timing, and any required cure periods without weakening the agreed emergency security controls. The platform's security, policy, and billing lifecycle decisions are already recorded in this Agreement.

10. Term, cancellation, termination, and data handoff

10.1 The Agreement begins on the date signed or the trial start date, whichever is stated in Section 1.3, and continues through the trial and monthly subscription periods unless ended under this Agreement.

10.2 The Merchant may request cancellation through the available billing or support process. Unless Nurava is required by law or confirms a billing error, cancellation takes effect at the end of the paid period and does not create a routine cash refund. The setup fee is refundable only where Nurava cannot provision the store before setup work begins. Any approved outage credit is applied automatically to a future subscription invoice and is not a cash refund.

10.3 Nurava may suspend or terminate access for non-payment, serious breach, unlawful activity, security risk, fraudulent information, prohibited content, failed verification, or a requirement of law or a provider.

10.4 Before access ends, the Merchant should use the available export process to obtain eligible tenant data. Exports do not include secrets, provider credentials, private platform security data, or information the Merchant is not authorized to receive.

10.5 After 90 days from the end of paid access, merchant store, catalogue, and workspace data may be deleted or anonymized. Closed shopper enquiries and contact details are due for deletion or anonymization 12 months after the last interaction while the workspace remains active. Verification document files are due 90 days after the final verification decision or account end, whichever is later. SaaS billing, invoice, payment, refund/credit, audit, and legal acceptance records are retained for 7 years after the relationship or last transaction ends, unless a legal hold or applicable law requires longer.

10.6 Final termination notice, post-termination access, and deletion wording: [LEGAL/PRIVACY REVIEW / CONFIRMATION]. The agreed soft-deletion, export, retention, and preservation approach is recorded above; counsel should confirm the final notice and wording.

11. Data protection and privacy

11.1 The parties acknowledge that the platform may process account, merchant, staff, shopper, enquiry, order-history, billing, verification, and communication data in operating the services.

11.2 The platform's versioned privacy and legal-acceptance approach is recorded in this Agreement. Before production self-service billing, counsel should confirm the final privacy notice and any required data-processing schedule, including the parties' controller/processor roles for each processing purpose, permitted instructions, security measures, subprocessors, international transfers, breach handling, data-subject requests, and deletion/return obligations.

11.3 The Merchant must provide lawful and transparent notices to shoppers and staff, collect required consents, honor unsubscribe requests, and provide only the data necessary for the requested service.

11.4 Nurava will apply tenant-scoped access controls and should not disclose one Merchant's data to another Merchant. Platform support access is explicit, least-privilege, logged, and read-only by default unless a higher permission is authorized.

11.5 Data protection officer/contact, registration position, processing locations, subprocessor list, breach-notification period, and data-processing schedule: [LEGAL/PRIVACY REVIEW / CONFIRMATION]. These are formal compliance confirmations for counsel and the Platform Provider; they do not change the agreed merchant-direct or tenant-isolation model.

12. Intellectual property and content

12.1 Nurava retains ownership of the Platform, its software, infrastructure, templates, system design, trademarks, and platform materials.

12.2 The Merchant retains ownership of its business name, logos, product content, photographs, policies, and other materials it supplies, subject to the licenses required to host, display, secure, back up, and promote the Merchant's store through the agreed Platform features.

12.3 The Merchant warrants that it has the rights and permissions needed for content it uploads and will protect Nurava from claims caused by content, products, or instructions supplied by the Merchant, subject to the final lawyer-reviewed liability wording.

12.4 Nurava may remove or restrict content that creates a security, legal, intellectual-property, consumer-protection, or platform-policy risk.

13. Support, availability, and changes

13.1 The Platform is provided as a hosted service. Planned maintenance, provider outages, internet failures, security events, force majeure, and third-party service failures may affect availability.

13.2 Nurava will provide support through the contact details and channels it publishes for the Merchant. The standard service-credit protection is available to all paid plans for qualifying core-platform outages under Section 5.10. No additional response time, uptime percentage, priority, or Enterprise commitment is promised unless recorded in a signed Enterprise or support schedule.

13.3 Nurava may change features, integrations, plan entitlements, prices, or policies for future billing periods, subject to the notice and renewal terms in the final approved commercial policy.

13.4 Support SLA, maintenance notice, price-change notice, service credits, and change-control wording: The agreed standard service-credit policy is recorded in Section 5.10. Counsel should confirm the final notice, exclusions, dispute, and Enterprise schedule wording without reopening the selected plan or pricing.

14. Legal confirmation and final contract provisions

The commercial decisions are recorded in this Agreement. The following provisions are legal drafting and confirmation matters that should be completed by a qualified professional; they are not unanswered commercial questionnaire decisions and must not be invented from this template:

- limitation or exclusion of liability;
- indemnities and insurance requirements;
- warranties and disclaimers;
- force majeure;
- dispute escalation, mediation, arbitration, or court process;

- governing law and jurisdiction;
- notices and accepted delivery methods;
- assignment and subcontracting;
- severability, waiver, entire agreement, and order of precedence; and
- execution by electronic signature, counterpart, or witness.

Governing law/jurisdiction confirmed by counsel: _____ **Dispute escalation contact/process:** _____ **Final legal schedule attached:** ☐ Yes ☐ No **Reference:** _____

Until the professional review and entity-specific fields are confirmed, this document should be treated as the agreed commercial basis and a contract draft, not as the final enforceable contract.

15. Document versions and merchant acknowledgement

The platform implementation uses versioned merchant acceptance records. At trial creation and before first selling publication, the Merchant must acknowledge the then-current versions of:

- merchant terms: **merchant-terms-v1**;
- merchant privacy notice: **merchant-privacy-v1**; and
- this merchant agreement: **merchant-agreement-v1**.

Changing a document version requires renewed acceptance. Material changes receive at least 30 days' notice and take effect for an existing Merchant at renewal. Existing Merchants remain on their accepted version until renewal; urgent security or legal changes may require earlier acceptance. Minor formatting or typo corrections do not by themselves require a new version. Acceptance records may be exported and are preserved with billing and legal records separately from merchant workspace-retention deletion.

By signing below, the parties confirm that they have read the commercial schedule, understand the merchant-direct sales boundary, understand that this is SaaS and not a physical lease, and will complete the marked legal, tax, privacy, and operational fields before relying on this document as the final Agreement.

Schedule A — Commercial decision record

This Schedule records the launch decisions captured in the Nurava Tech commercial questionnaire and implementation alignment records.

Decision area	Recorded answer
Launch market	Kenya
Billing currency	Kenyan Shillings (KES)
Service model	Hosted merchant storefront SaaS subscription
Store relationship	One independent merchant store per tenant; not a shared marketplace cart
Billing interval	Monthly
Trial	30 days
Payment grace period	3 days
SaaS billing method at launch	M-Pesa only
SaaS collection model	Invoice-driven; provider callback confirms payment; no assumed automatic recurring debit
Shopper commerce model	Merchant-direct; the Merchant is merchant of record
Shopper funds	Nurava does not collect shopper funds
Shopper responsibilities	Merchant handles payment, delivery, returns, refunds, warranties, taxes, complaints, and sale contract
Setup fee and first subscription	Collected together after the trial, through the applicable invoice/payment request
Nurava SaaS tax policy	16% VAT-inclusive pricing for taxable subscriptions, setup fees, and paid add-ons; invoices show the tax breakdown when enabled after registration/classification confirmation
Subscription cancellation refund	No routine refund; access continues through the paid period, subject to duplicate-payment, billing-error, or legal exceptions
Setup-fee refund	Refund only if Nurava cannot provision the store before setup work begins; non-refundable after setup work starts
Standard outage credit	All paid plans; after 24 continuous hours of a verified Nurava/core-hosting outage, one recurring-subscription day per complete 24 hours, capped at one monthly subscription fee and applied automatically
Add-ons	Optional paid add-ons; M-Pesa add-ons remain pending until successful invoice confirmation
WhatsApp	Opt-in paid order-update add-on; promotional messaging requires consent and unsubscribe controls
Overages	No automatic surprise overages; server-side limits block additions at plan capacity
Store publication	Requires verified host and approved merchant verification
Security/policy suspension	Authorized platform action may restrict access or publication; actions are audited

Decision area	Recorded answer
Billing suspension	Lifecycle rules can move unpaid subscriptions through past-due, grace, suspended, cancelled, incomplete, or unpaid states
Data deletion	Soft deletion followed by export/retention workflow
Merchant workspace retention	90 days after paid access ends, then delete or anonymize
Closed shopper enquiry retention	12 months after the last interaction while the merchant workspace remains active
Verification document retention	90 days after final verification decision or account end, whichever is later; decision/audit metadata is retained separately
Preserved billing/legal records	7 years after the relationship or last transaction, subject to legal hold or applicable law
Historical commissions	Historical records may remain for reconciliation; new shopper commission creation is disabled in merchant-direct mode

Schedule A acknowledgement

Merchant initials: _____ Platform initials: _____ Date: _____

Schedule B — Selected plan and entitlements

Selected plan: ☐ Starter ☐ Business ☐ Enterprise **Agreed monthly fee:** KES _____
Agreed setup fee: KES _____ **Discount/waiver, if any:** _____ **Payment due date/invoice**
instruction: _____ **Add-ons selected:** ☐ None ☐
WhatsApp order updates ☐ Other: _____ **Custom domain approved:** ☐ No ☐ Yes:
_____ **Enterprise/SLA attachment:** ☐ No ☐ Yes,
reference: _____

The selected plan’s standard entitlements are:

Entitlement	Starter	Business	Enterprise
Active products	50	250	1,000
Staff accounts	3	15	100
Storage	2 GB	10 GB	50 GB
Domain	Nurava subdomain	One custom domain	Custom-domain expansion
Analytics	Basic	Advanced	Advanced
Support/SLA	Standard platform support	Standard platform support	Only if negotiated in writing

Merchant initials: _____ Platform initials: _____ Date: _____

Schedule C — Verification and signing checklist

Before publication or first selling access, confirm:

Item	Status	Notes/date
Merchant identity and authority checked	☐ Pending ☐ Complete	_____
Merchant email verified	☐ Pending ☐ Complete	_____
Merchant phone OTP verified	☐ Pending ☐ Complete	_____
Government ID reviewed where applicable	☐ Pending ☐ Complete	_____
Location evidence reviewed	☐ Pending ☐ Complete	_____
Merchant-owned M-Pesa evidence reviewed	☐ Pending ☐ Complete	_____
Owner declaration/business registration reviewed	☐ Pending ☐ Complete	_____
KRA PIN/tax evidence reviewed where applicable	☐ Pending ☐ Complete	_____
Store host/domain verified	☐ Pending ☐ Complete	_____
Legal/privacy/tax fields completed	☐ Pending ☐ Complete	_____
Merchant terms/privacy/agreement versions accepted	☐ Pending ☐ Complete	_____

Signature page

The parties sign this Agreement after professional review confirms the legal, privacy, tax, billing, refund, support, and dispute schedules and the parties complete the entity-specific fields. The commercial decisions themselves are recorded and are not being reopened by this review. The intended platform business identity is **Nurava Tech**; its registered business details and PayBill registration must be completed before live M-Pesa collection.

For Nurava Tech Platform

Legal/entity name: _____
Authorized representative/Super Admin: _____ Title: _____
Signature: _____
Date: _____

For the Merchant

Legal/business name: _____
Authorized signatory: _____
Title/capacity: _____
Signature: _____ Date: _____

Witness / optional independent confirmation

Name: _____
ID/registration details: _____
Signature: _____ Date: _____

Attachments included: ☐ Lawyer-reviewed merchant terms ☐ Lawyer-reviewed privacy notice ☐ Lawyer-reviewed refund/cancellation policy ☐ Data-processing/privacy schedule ☐ Support/SLA schedule ☐ Pricing/invoice schedule ☐ Verification approval record ☐ Other:

End of Agreement — Nurava Tech Merchant Store Hosting and SaaS Services Agreement, merchant-agreement-v1